

DEED OF ACKNOWLEDGEMENT

SIMPLR INTERNATIONAL PTY LTD

RISE HOLDINGS CO LTD

DR STEPHEN MOSS

SCOTT ROANTREE

THIS DEED is made on

2023

BETWEEN

PARTIES

Name **SIMPLR INTERNATIONAL PTY LTD (ACN: 664 478 237)**
Short form name **Company**
Address Level 30 Australia Square, 264 George Street, SYDNEY, NSW, 2000

Name **RISE HOLDINGS CO LTD**
Short form name **Rise**
Address 141-0031 West Side Gotanda, Building 6-2-7 Gotanda, Shinagawa-Ku, Tokyo, Japan

Name **DR STEPHEN MOSS**
Short form name **Moss**
Address Level 30 Australia Square, 264 George Street, SYDNEY, NSW, 2000

Name **SCOTT ROANTREE**
Short form name **Roantree**
Address Level 30 Australia Square, 264 George Street, SYDNEY, NSW, 2000

BACKGROUND

- A. The Company will receive an amount of SGD 300,000 from Rise for the purpose of transferring to the PMI Bank Account (**Transfer Amount**).
- B. The Company acknowledges that it will transfer the Transfer Amount to the PMI Bank Account as soon as it has received the monies from Rise.
- C. Each of Moss and Roantree (**Guarantors**) has agreed to guarantee the obligations of the Company under this deed.

1. INTERPRETATION

1.1 Definition

Guarantors means Moss and Roantree and **Guarantor** has the corresponding meaning.

Simplr Int Bank: NAB
SWIFT: NATAAU3303M
BSB: 082001
Account: 200228608
Bank Address: 333 George Street, Sydney, NSW, 2000

PMI Bank Account means the bank account for PT Pelangi Medika Internasional with the details as follows:

Bank Name: Bank Mandiri
Acc Number: 1200001222780
Bank Address: Ancol Branch Office North Jakarta, Jl Parang Tritis Raya No 4, RT 4/RW 11, Anchor Pademangan District, North Jakarta – Special Capital Region Jakarta 14430

Transfer Amount means SGD 300,000.

1.2 Consideration

The parties enter into this document in consideration of, among other things, the mutual promises contained in this document.

2. ACKNOWLEDGEMENT

2.1 Acknowledgement

Rise will transfer the Transfer Amount to the Company, and subject to receipt of the Transfer Amount to the Company's bank account by electronic funds transfer in cleared funds, the Company will immediately transfer the Transfer Amount to the PMI Bank Account.

3. GUARANTEE AND INDEMNITY

3.1 Consideration Acknowledgement

- (a) Each Guarantor gives the guarantee and indemnity contained in this clause 3 in consideration of Rise agreeing to enter into this deed at the request of the Company.
- (b) Each Guarantor acknowledges receipt of valuable consideration from Rise incurring obligations and giving rights under this clause 3.

3.2 Guarantee

- (a) Each Guarantor unconditionally and irrevocably guarantees to Rise the due and punctual performance by the Company of the each of their obligations under or in connection with this deed.
- (b) If the Company does not comply with those obligations in accordance with this deed, then Guarantors agrees to comply with those obligations when Rise requests the Guarantors to do so.

3.3 Indemnity

Each party unconditionally and irrevocably indemnifies the other parties against all losses, damages, costs and expenses which the other parties may suffer or incur as a consequence of any breach or non-observance of their obligations under or in connection with this deed but excluding any indirect or consequential loss or damage whether arising in contract or tort (including negligence or breach of any statutory duty).

4. MISCELLANEOUS

4.1 Authority

Each of the individuals, persons or entities signing this deed on behalf of a party warrants and represents that such individual, person or entity is duly authorised and empowered to enter into this deed and bind such party.

4.2 Non-disclosure of this deed

The parties must not disclose to any person: the terms of this deed; or the nature and effect of the terms of this deed, except:

- (a) if required to do so by law only to the extent that the disclosure is required by law;
- (b) with the prior written consent of the other parties; or
- (c) as necessary to enforce the provisions of this deed.

4.3 Costs

Each party shall pay its own legal and other costs and expenses relating directly or indirectly to the preparation of, and performance of its obligations under, this deed.

4.4 Amendment

This deed may only be varied or replaced by a document duly executed by the parties.

4.5 Further assurance

Each party shall promptly execute all documents and do all things that any other party from time to time reasonably requires of it to effect, perfect or complete the provisions of this deed and any transaction contemplated by it.

4.6 Plea in bar

Harvey may plead this deed in bar to any claim or proceeding by him or against him in respect of the relevant subject matter of this deed.

4.7 Injunctive relief

In the event of a breach or threatened breach of the terms of this deed by a party, any other party to this deed will be entitled to an injunction restraining that party from committing any breach of this deed without showing or proving any actual damage sustained by them.

4.8 Entire understanding

- (a) This deed embodies the entire understanding and agreement between the parties in respect of the subject matter of the deed.
- (b) All previous negotiations, understandings, representations, warranties, memoranda or commitments in relation to, or in any way affecting, the subject matter of this deed is merged in and superseded by this deed and shall be of no force or effect whatever and no party shall be liable to any other party in respect of those matters.
- (c) No oral explanation or information provided by any party to another shall affect the meaning or interpretation of this deed; or constitute any collateral agreement, warranty or understanding between any of the parties.

4.9 Severability

Any clause in this deed, which is void, illegal or unenforceable in any jurisdiction does not affect the validity, legality or enforceability of that provision in any other jurisdiction or of the remaining provisions in that or any other jurisdiction.

4.10 Governing law and jurisdiction

For all purposes this deed shall be governed and construed in accordance with the laws of New South Wales, Australia and the parties submit to the non-exclusive jurisdiction of the Courts of New South Wales, Australia and its appellate courts.

EXECUTED AS A DEED:

EXECUTED by SIMPLR INTERNATIONAL PTY LTD)
in accordance with section 127(1) of the)
Corporations Act 2001)



Signature of Director

Signature of Director / Company Secretary

Dean Kilby

Name of Director

Name of Director / Company Secretary

EXECUTED by RISE HOLDINGS CO LTD by its)
duly appointed authorised representative in the)
presence of:)

Signature of Authorised Representative

Signature of witness:

Name of Authorised Representative

Name of Witness

Position of Authorised Representative

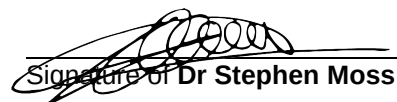
SIGNED, SEALED AND DELIEVERED by)
DR STEPHEN MOSS in the presence of:)



Signature of Witness

Kate Glennon

Name of Witness



Signature of Dr Stephen Moss

SIGNED, SEALED AND DELIEVERED by)
Scott Roantree in the presence of:)



Signature of Witness

Kate Glennon

Name of Witness



Signature of Scott Roantree